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Date: September 3, 2026

Subject: Overdue FOIA Appeal APP2026014953REQ (Request COW2026000731) Response Past Statutory Deadline

To the USCIS FOIA/PA Appeals Office:

I am writing about a FOIA appeal that is now well past the deadline set by statute and by the Department's own regulations.

Appeal control number: APP2026014953REQ

Underlying request control number: COW2026000731

Date appeal submitted: May 12, 2026

Under 5 U.S.C. 552(a)(6)(A)(ii), USCIS was required to make a determination on this appeal within 20 working days of receipt. That deadline fell in June 2026. More than 75 working days have now elapsed. The Department's own regulation at 6 C.F.R. 5.8 restates the same 20 working day standard and assigns adjudication to the DHS Office of the General Counsel or a designated component Appeals Officer.

The only extension the statute permits is the one at 5 U.S.C. 552(a)(6)(B), which allows an additional 10 working days in unusual circumstances and requires written notice to the requester stating the reason for the extension and the date a determination is expected. I have received no such notice. Even had that extension been properly invoked, the outer limit for a determination would have passed in late June 2026.

The FIRST tracking system continues to show this appeal in "Submitted" status and lists an estimated completion date of June 16, 2027. That is more than a year beyond the statutory deadline. Section 552(a)(7)(B) requires agencies to provide an estimated date for completion of action on a matter, and I would like to understand what that date reflects.

The appeal challenges USCIS's determination that no records were located in response to my request for records concerning the Vetting of Wedding-Based Schemes (VOWS) platform. As the appeal sets out, USCIS awarded three task orders to Palantir Technologies between October 2025 and February 2026 that name the VOWS platform directly in their published award descriptions.

I request the following:

1. Confirmation that the appeal has been received, assigned, and is under adjudication, along with the name of the assigned Appeals Officer.
2. Copies of any written notice of extension issued under 5 U.S.C. 552(a)(6)(B) in connection with this appeal, if any was issued.
3. An explanation of the basis for the June 16, 2027 estimated completion date and whether it reflects an actual projection for this appeal or a generic queue figure.
4. A firm date by which USCIS will issue a determination.
5. The name and contact information of the FOIA Public Liaison assigned to this matter.

Please treat this as a request for assistance from the FOIA Public Liaison under 5 U.S.C. 552(a)(6)(B)(ii) if the appeal cannot be adjudicated promptly. I am also prepared to seek dispute resolution services from the Office of Government Information Services, in which DHS regulations commit the Department to participate in good faith.

I would appreciate a substantive response within 20 working days.

Sincerely,
Michael Wriston